(37) **Tentative Ruling**

Re: ***Angel Andrade***
Court Case No. 26CU00748

Hearing Date: August 20, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny, without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

Petitioner has not included all relevant medical records for the injuries sustained by the minor. Medical Reports from Fresno Imaging Center and Nicole Carter, LMFT were the only ones attached. Thus, with the exception of mental health issues, there is no record showing the injuries resolved.

The medical billing is not fully substantiated. First, without the medical records, the court cannot assess if the complete medical billing is included with this Petition. Second, petitioner seeks reimbursement of $2,000 for AWS Health, $800 for Dr. Robert E. Caton, and $600 for Beverly Radiology. Neither medical records regarding treatment nor billing records were included for these providers. There is also no explanation for why these are not included with the Medi-Cal lien.

The Petition requests costs in the amount of $621.94. The court does not intend to approve charges against the minor's recovery that are unreasonable. (Prob. Code, § 3601.) The court is particularly concerned with the 1) Demand Draft Fee for $187.50 and 2) File Preservation for $300. The court is not inclined to include these costs. The Demand Draft Fee appears to be for work that would ordinarily be performed by counsel and thus be included in attorney's fees. The court is unaware of any authority for a file preservation fee.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: KCK **on** 08/18/26 .
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Nino v. General Motors, LLC***
Superior Court Case No. 25CECG02336

Hearing Date: August 20, 2026 (Dept. 501)

Motion: by Plaintiff for Attorney Fees and Costs

Tentative Ruling:

To grant the motion for an award of attorney fees and award $22,962.50 in fees in favor of plaintiff David Nino. To award costs in the amount of $1,703.12.

Explanation:

Plaintiff moves for an award of attorney fees and costs as the prevailing buyer under Civil Code section 1794, subdivision (d). Plaintiff submits an executed settlement agreement authorizing plaintiff to seek fees and costs from defendant. (Chavez Decl., Ex. A.) In opposition, defendant does not contest the basis of plaintiff's seeking of an award of fees. The court finds that plaintiff sufficiently states a basis upon which to seek an award of fees and costs.

Fees

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) In determining the reasonable amount to award, "the court should consider ... 'the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded [citation]; the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.'" (*Ibid*.) An award of costs must be "reasonably necessary to the conduct of the litigation" and per (c)(3), shall be "reasonable" in amount. (Code Civ. Proc. § 1033.5(c)(2).) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case." (*Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Counsel for plaintiff seeks to set the lodestar at $21,860, excluding an additional $3,150 sought in connection with anticipated time for preparing the motion at bench. Counsel submits a total of 56.6 hours of billed time across two timekeepers. Counsel predominately practices in consumer protection claims, such as the present action. (Miser Decl., ¶ 16.) As to the attorneys, counsel submits hourly rates of $475 for John Miser, and $350 for Raquel Chavez. Defendant challenges the reasonableness of each attorney's respective rates. The court finds the rates to be negligibly high for the Fresno area and reduces the rates to $450 for Mr. Miser and $325 for Ms. Chavez.

Following a careful review of the entries submitted, the court finds that a few entries that are disproportionately billed. (*E.g.*, Chavez Decl. Ex. B, pp. 1-3 [8.3 hours researching Civil Code sections 1782, 1793.2 and Code of Civil Procedure sections 871.20-871.28]; Chavez Decl. Ex. B, p. 2 [1.5 hours to prepare deposition notice].) Additionally, as defendants suggest in opposition, the amount of time spent on communicating with the client appears high. The court does not credit Mr. Miser with 2.5 hours and Ms. Chavez with 8 hours. As to plaintiff's request for $3,150 for anticipated fees in connection with the motion at bench. While plaintiff did submit a reply brief, plaintiff did not state how many hours were spent on the reply. Since plaintiff failed to provide evidence of fees actually incurred for reviewing the opposition and preparing the reply, the time allowed is limited to the five hours[2] counsel indicates was incurred in connection with preparing the moving papers. Therefore, the lodestar is set at $18,370.

Plaintiff seeks the imposition of a multiplier of 1.3. As stated by the California Supreme Court regarding lodestar multipliers, sometimes referred to as fee enhancements:

> …the trial court is *not required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof. In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*. We emphasize that when determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar. The factor of extraordinary skill, in particular, appears susceptible to improper double counting; for the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar. A more difficult legal question typically requires more attorney hours, and a more skillful and experienced attorney will command a higher hourly rate. (*See Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004, 185 Cal.Rptr.

[2] The court further notes that Ms. Chavez billed one hour for the preparation of the instant fees motion on her billing record. This appears to be duplicative of counsel's claimed five hours in the memorandum of points and authorities in support of the moving papers; therefore, the one hour is discounted from Ms. Chavez's total time.

145.) Indeed, the " 'reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.' " (*Ibid*.) Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139 [emphasis original].)

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Id.* at p. 1132, *citing Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 49.)

Here, plaintiff submits that counsel took the matter on contingency, and obtained an exceptional result. Plaintiff further suggests that there was undue delay in settling this matter. The court acknowledges the contingent risk taken by counsel, but finds the outcome to be ordinary to the statutory relief afforded in these actions. Though plaintiff suggests undue delay, the timeline supports a finding that all parties treated the matter as proceeding to trial. The steady nature of the discovery conducted suggests as much. This would not constitute a delay, much less undue delay. Moreover, this matter settled less than one year following the commencement of the action and plaintiff's counsel does not suggest that the delay precluded other employment. Nonetheless, the court applies a multiplier of 1.25. The motion for an award of attorney fees is granted in the amount of $22,962.50.

Costs

Costs are sought via declaration in the amount of $2,158.12. (Chavez Decl., Ex. C.) Defendants argue that some of the costs sought are disallowed.

If the items on a verified statement appear to be proper charges, the statement is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. (*See Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338.) The losing party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence to prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) If the claimed items are not expressly allowed by statute and are objected to, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Here, plaintiff submits, among other costs, costs for filing fees, service, mediation, and deposition. Defendant challenges the entirety of the costs on the ground that a memorandum of costs is not provided and plaintiff merely concludes that these expenses were reasonably incurred without explanation. While a costs memorandum is not filed, the court determines the expense report attached to a declaration signed by Ms. Chavez to be sufficient. To the extent that defendant contends that each entry is unintelligible and therefore, defendant cannot properly object to the claimed items, it is evident that plaintiff is seeking $512.82 in filing fees, $87.55 in service costs, and $1,102.75 for costs relating to deposition. These costs are expressly allowable under Code of Civil Procedure section 1033.5. However, the court is unable to evaluate the reasonableness of the cost for "Woodruff 1/06/26" in the amount of $455. Accordingly, the costs sought are reduced by $455. Costs are awarded in the total amount of $1,703.12.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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